Matter 29 Discovery Deployment Plan

Case No. 4:26-cv-09249-ASK · Hon. Ajay S. Krishnan · DRAFT — NOT FILED OR SERVED

Status — drafts not served or filed

This packet consists of six written discovery sets, a Rule 26(f) ESI discussion proposal, two held Rule 30(b)(6) outlines, and separate delivery/service records. All six sets are unsigned; none has been delivered or served by preparation or repository storage of this packet.

Matter and planning dates

N.D. Cal. 4:26-cv-09249-ASK; Judge Ajay S. Krishnan. The Matter 29 portfolio calendar lists November 10, 2026 as the Rule 26(f) meet-and-confer and ADR certification target; November 24 for initial disclosures and the joint CMC statement; and December 1 for the initial CMC. Confirm the actual conference date and any superseding orders before deployment.

Deployment sequence

1. Confirm operative docket caption and the name Plaintiff will use for his signature. The operative caption currently uses BRENDAN NGEHSI NEWANFORBI. Signature lines use Brendan Ngwa Nforbi, as requested. Update all sets consistently if a conforming order changes the caption.

2. Complete, sign, and date the two RFP sets in accordance with Rule 26(g). Deliver early under Rule 26(d)(2) if the timing and applicable orders permit. Record **DELIVERY**, not service. Properly delivered early requests are deemed **SERVED** at the first actual Rule 26(f) conference.

3. Use the ESI proposal to confer on repositories, native formats, retention, confidentiality, time zones, and production dates. Request a crosswalk between Amazon's and Accurate's identifiers for the same screening order.

4. At or after the Rule 26(f) conference, sign and serve the interrogatory and admission sets separately under Rules 33 and 36. Early-delivery treatment under Rule 26(d)(2) does not apply to interrogatories or RFAs.

5. Confirm that email service is expressly agreed or otherwise legally authorized. ECF notice of a filed document does not replace valid service of unfiled discovery. Keep timestamped delivery/service evidence.

6. Provide editable Word copies alongside PDFs, consistent with Judge Krishnan's standing order. Discovery is generally served on counsel rather than filed unless directed or needed in a discovery dispute.

7. Audit the initial responses and productions, issue focused deficiency correspondence, meet and confer in real time, and use the court-directed joint discovery-letter procedure when appropriate. Do not serve the held Rule 30(b)(6) outlines without setting appropriate logistics and refining topics.

Counsel routing — verify counsel of record and service consent

Amazon: Andrew P. Frederick, Morgan Lewis, andrew.frederick@morganlewis.com, plus any designated service counsel.

Accurate: John Drury, JDrury@seyfarth.com; Jasmine J. Stanzick, jstanzick@seyfarth.com; and any designated service counsel.

Response timing

Rule 34 responses ordinarily are due 30 days after service, or 30 days after the first Rule 26(f) conference for properly delivered early requests. Rules 33 and 36 ordinarily permit 30 days after service. A stipulation

or court order may change timing. If the first conference is November 10 and no altered period applies, December 10, 2026 is an illustrative early-RFP response date.

High-impact record targets

Amazon: RFPs A-02, A-04, A-05, A-06 and A-08.

Accurate: RFPs B-02, B-03, B-05, B-09 and B-12.

Cross-reference exact status changes, report versions, transmission and access logs, original applicant data, and the Santa Clara criminal-component timeline before considering amendments or depositions.

Review flags before sending

- Do not serve held deposition outlines as notices. Date, location, appearance platform, and recording methods remain open.
- Evaluate whether the November 15 upper date for some requests should be adjusted or supplemented for newly created responsive materials.
- Keep the October 14 preservation and consumer file requests distinct from formal Rule 34 discovery.
- Verify court source material before asserting that a criminal disposition date, parole status, or recorded conviction answer is inaccurate.
- Do not give opposing counsel control over Plaintiff's signature. Signature lines remain blank for Plaintiff's review and execution.

Governing references

Fed. R. Civ. P. 26(d)(2), 26(g), 26(b)(1), 30(b)(6), 33, 34, and 36; N.D. Cal. Civil Local Rules effective October 2, 2026; Judge Krishnan's August 20, 2026 standing order; N.D. Cal. ESI Guidelines.

This is a working deployment checklist, not an executed stipulation, notice, discovery service, or court filing.